

The present Execution Petition filed by the decree holders to enforce the award passed in L.A.C. No. 313/2000 and claimed 1/5th share in the awarded compensation amount.

JDR filed detailed objections particularly contending that the JDR acquired the land in Survey No. 26/2 and 26/3 for which they have awarded the compensation and deposited the same to the Court in L.A.C. No. 313/2000. As such, they are not liable to pay any amount as claimed in the Execution Petition. Accordingly prayed to close the Execution Petition.

On that basis the point for consideration is as under:

“Whether the objection raised by JDR is sustainable under law?”

Heard the arguments. Perused the materials on record, on that basis, my finding on the above point is in the affirmative, for the following:

REASONS

Point: Undisputedly the present Execution Petition filed by the decree holders to enforce the award passed in L.A.C. No. 313/2000. The amount claimed in this Execution Petition is Rs.4,11,939/- and also claimed cost of the copies of Rs.200/-. The decree holders also produced copy of the award passed in L.A.C. No. 313/2000. On perusal of the said order, it is claimed that the reference made by the LAO / JDR to the Court in L.A.C. No. 313/2000 is under Sections 30 and 31 of Land Acquisition Act. The copy of the first page of the order sheet in L.A.C. No. 313/2000 is also furnished to the Court and as per the said fact, the respondent have deposited a sum of Rs. 4,11,939/- vide cheque bearing No. 794596 dated 25.07.2000. Therefore, it is clear that the LAO has already deposited the awarded

compensation amount with interest in L.A.C. No. 313/2000. The said amount has been kept in Fixed Deposit at SBI, Cauvery Bhavan Branch, Bengaluru. Therefore, there is no amount ordered to be directed to the JDR to deposit to the Court as the amount was already deposited in the Court in L.A.C. No. 313/2000. As such, these decree holders can receive their respective shares in the compensation by filing necessary application in L.A.C. No. 313/2000 and there is no necessity to file separate Execution Petition. In view of the said fact, certainly, the objection raised by the JDR to be accepted and this Execution Petition is liable to be dismissed with a liberty to the decree holders to file necessary application in L.A.C. No. 313/2000 wherein the amount has been deposited. Accordingly, this Court is of the humble opinion that the objection raised by the JDR in this case is valid and proper. Accordingly, the above point is answered in the affirmative. In the result, I proceed to pass the

following:

ORDER

Objection raised by the JDR is hereby accepted.

Consequently, the decree holders are directed to file necessary application for release of their respective shares in the awarded compensation in L.A.C. No. 313/2000.

Consequently this Execution Petition is hereby closed.

(PADMA PRASAD)
II Addl. City Civil and Sessions Judge,
& Spl. Judge, Bengaluru.